

the Court to insert a special direction that the moneys *may* be paid to any two or more of them (*c*).

4. **All the trustees must prove.** — Again, if a debtor to the trust become bankrupt, *all* the trustees should join in the proof (*d*), but under particular circumstances the Court will make an order for *some* of the trustees to prove, but even then the Court has occasionally inserted a direction that the dividends shall be *payable* to *all* the trustees (*e*).

5. **Acknowledgment of debt by one trustee.** — If a mortgage be made to two trustees so described and the statutory period elapse, an interim acknowledgment by *one* of the trustees will not prevent the operation of the Statute of Limitations in bar of redemption (*f*).

6. **In public trusts the majority of the trustees may bind the rest.** — Where there are several trustees, and the trust is of a *public* character, the act of the *majority* is held to be the act of the whole number (*g*); as where there were seven trustees and they met for the purpose of electing a school-master, and at the meeting five of the trustees concurred in the appointment, but two dissented, the act of the majority was considered to bind the minority (*h*). But of course the act of the majority does not bind the minority, so far as the act is beyond the proper sphere of the duty of the trustees (*i*). And when a *special* power is given to trustees, it cannot be exercised by the majority only, but *all* must join (*j*). Now, by 32 & 33 Vict. c. 110, s. 12, it is enacted that a *majority* of *charity* trustees present at a meeting duly constituted, and voting, shall have and be deemed to have always had the same power of disposition over the charity property, as if it were the act of the whole body; and by

(*c*) *Attorney-General v. Brickdale*, 8 Beav. 223.

(*d*) *Ex parte Smith*, 1 Deac. 391, per Sir T. Erskine.

(*e*) *Ex parte Smith*, 1 Deac. 385.

(*f*) *Richardson v. Younge*, 6 L. R. Ch. App. 478.

(*g*) *Wilkinson v. Malin*, 2 Tyr. 544; *Perry v. Shipway*, 1 Giff. 1; and see *Attorney-General v. Shearman*, 2 Beav. 104; *Attorney-General v. Cum-*

ing, 2 Y. & C. C. C. 139; *Younger v. Welham*, 3 Sw. 180.

(*h*) *Wilkinson v. Malin*, 2 Tyr. 572. As to the power of a majority of two-thirds of the trustees to pass the legal estate, see 23 & 24 Vict. c. 136, s. 16, and *post*.

(*i*) *Ward v. Hipwell*, 3 Giff. 547.

(*j*) See *Re Congregational Church. Smethwick*, W. N. 1866, p. 196.